

**IN THE
SUPREME COURT OF THE
STATE OF WASHINGTON**

Case Number: 102950-1

ZACKARIAH BENNETT

Appellant

and

MELVINA MANNING

Respondent

MOTION TO STRIKE FALSE STATEMENTS AND INCORPORATION OF NEW
EVIDENCE

I, Zackariah Jeremiah Bennett, hereby file a Motion to Strike to include new evidence crucial for the Court's consideration.

Introduction

This motion seeks to strike false statements made by the respondent, supported by new evidence that demonstrates a pattern of dishonest declarations and conflicting statements made by the respondent in this and related cases.

New Evidence of Conflicting Declarations

1. **Email Correspondence:**

Recent email from the respondent's counsel, Nancy Gass, reveals that the video surveillance system automatically deletes recordings every 30 days and that the only preserved video was recorded on a cell phone. This contradicts earlier claims regarding the availability of video recordings. (Attached as Exhibit A)

2. **Motion for Renewal of Protection Order:**

The respondent filed a Motion for Renewal of Protection Order on May 1, 2023, despite the assertion that the issue is moot. This shows intent to continue the order beyond the alleged mootness. (Attached as Exhibit B).

Argument

The conflicting declarations and newly presented evidence are indicative of a pattern of unreliable statements, undermining the credibility of the respondent's submissions in the current proceeding. Such discrepancies can significantly prejudice the fair assessment of this case, warranting their removal from the record.

Relief Sought

Accordingly, Appellant respectfully requests that the Court strike the false statements from the record to preserve the integrity of this judicial process.

Respectfully submitted,

Zackariah Bennett

A handwritten signature in black ink, appearing to read 'Zackariah Bennett', written in a cursive style.

05/31/2024

351 words

Exhibit A

On Mon, May 20, 2024, 14:46 Tolt Law dba OW Hollowell & Associates <carnationlaw@comcast.net> wrote:

We sent you the only video my client has.
Her system deletes videos every 30 days.

The only way she knew how to preserve the video was to record it on her cell phone.

You have what you asked for to the extent my client has it in her possession.

Nancy Gass

Attorney at Law

O.W. Hollowell & Associates

4471 Tolt Avenue

P.O. Box 1041

Carnation, WA 98014

Tel: (425) 333-4848

Fax: (425) 333-4884

Exhibit B

Superior Court of Washington, County of King

Melvina Manning	05/13/1959	No.22-2-09380-3 KNT
Petitioner	DOB	Motion for Renewal of Protection
vs.		Order (MTDRPO)
Zackariah J Bennett	01/07/1981	☒ [X] Domestic Violence
Respondent	DOB	☐ [] Stalking
		☐ [] Vulnerable Adult
		☐ [] Sexual Assault
		☒ [X] Unlawful Harassment

Motion for Renewal of Protection Order

1. The *Protection Order* granted on (date) 08/05/2022, will expire on (date) 08/05/2022
2. I want to renew the protection order and any weapons surrender order because:

Zackariah J Bennett currently has a case with the Court of Appeals (Appellate Court Case Number 84450-4) to have the current Protection Order dismissed. No ruling has been made by the Appeals Court as it is still pending.

I have received over 20 E-Service notifications from documents that Zackariah J Bennett has filed with the Courts since the Protection Order was granted including Cause No. 22CV12186KCX filed on 08/04/2022 seeking an injunction on any prevention of communication.

On 04/24/2023, I accepted E-Service from Zackariah J Bennett for King County Superior Court Cause No. 08-3-03956-4 Under this Cause No. I was granted custody of Timothy Bennett. I do not know the purpose of this filing as I have only received an E-Service notification.

The above actions taken by Zackariah J Bennett are why I am requesting that the Protection Order be renewed. He has made every effort to have the Protection Order dismissed and is making contact with me through the Courts with all of the Motions he has filed and continues to file. If the Protection Order is not renewed, he will try to make contact with myself and/or Timothy Bennett at our home or the school Timothy attends.

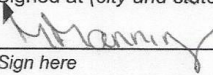
RCW 7.105.410
Mandatory (07/2022)
PO 050

Motion for Renewal of Protection
Order
p. 1 of 2

3. I want the renewed order to stay in place [x] for (number) 1 year/s [] permanently.
I certify under penalty of perjury under the laws of the state of Washington that the foregoing is true and correct.

Signed at (city and state): Carnation, WA

Date: 05/01/2023


Sign here

Print name Melvina Manning

You must provide an address where you will receive legal documents. You have a right to keep your residential address confidential. If you have one, you may provide an address, other than your residence, where you will receive legal documents:

**This document must be served on the other party, and
proof of service must be in the court file prior to the hearing.**